

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

August 11, 2014

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Brown, Ms. Broyles, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. Absent: Mr. Allen and Mr. Cook. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.). Mr. Brown moved to approve, seconded by Mr. Valdez. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on July 28, 2014. Motion (per Consent Agenda) carried.

Mr. Valdez and Mr. Brown each declared a conflict of interest (business interest in vouchers payable to Radio Station KYOY-FM and Ameri-Tech HVAC Services respectively) and vacated Council Chambers. Mr. Shanor moved to approve payment of vouchers as presented, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown and Mr. Valdez returned to Council Chambers.

Mayor Kaysen opened a public hearing to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for a portion of Tracts 245, 246, 247 and 248, Sunnyside Addition, 6th Filing, Laramie County, Wyoming (located at the northwest corner of the intersection of Hayes Avenue and US Highway 30) to be known as Carter Cottages. Logan Graves, Planning and Development, stated the proposed annexation is pursuant to a petition for annexation submitted by the property owner, Mousa Fino, through Brad Emmons, AVI, agent for the applicant, and that requirements and compliance of annexation conditions contained in state statutes have been met. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the hearing.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from AR Agricultural Residential to CB Community Business for Lots 1, 5 through 8, Block 2, all of Blocks 3 and 4, Countryside Addition and a portion of the NE¼ of Section 26, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming, to be known as US 30 Business Plaza (located at the southwest corner of the intersection of US Highway 30 and Whitney

Road). Reporting for Public Services Committee, Mr. Shanor moved to approve on third and final reading, seconded by Ms. Williams. Motion carried. Voting “yes” -- all members of the governing body present. (#4036)

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, a parcel of land situated in the north 102 feet of Tracts 323 and 324, Sunnyside Addition, 7th Filing, Laramie County, Wyoming (located south of and adjacent to Rock Springs Street, east of and adjacent to Pierce Avenue, and west of and adjacent to Polk Avenue) to be known as the Diamond Estates 5th Filing Annexation. Mr. Shanor moved to approve on third and final reading, seconded by Ms. Williams. Motion carried. Voting “yes” -- all members of the governing body present. (#4037)

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, the South ½ of Tracts 105 and 106, Sunnyside Addition, Fourth Filing, Laramie County, Wyoming (located at the northeast corner of the intersection of Monroe Avenue and Charles Street), to be known as the 4204 Charles Annexation. Mr. Shanor moved to approve on third and final reading, seconded by Ms. Williams. Motion carried. Voting “yes” -- all members of the governing body present. (#4038)

ORDINANCE - Amending various sections of the Cheyenne Unified Development Code (UDC) as initiated from the 2014 Annual Review, to increase point values for larger evergreen trees, deciduous trees, and shrub plantings, and reduce point values for large expanses of turf grass for all sites throughout the City requiring landscape improvements. Mr. Shanor moved to approve on second reading, seconded by Ms. Williams. Discussion topics included: Concern with reducing landscaping requirements for commercial properties and first impression of an attractive community by prospective businesses; incentivizing placement of larger trees which will retain beautification and aesthetic efforts; landscaping costs to business owners; redistribution of point values, and new construction landscaping challenges current provisions pose for unique building projects (ex: school facilities). Motion carried. Voting “yes” -- all members of the governing body present with the exception of Dr. Rinne voting “no”.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Unified Development Code, changing the zoning classification from County MR Medium Density Residential to MR-2 Medium Density Residential - Developing for the West 178’ of the North 102’ of Tract 324, Tract A (West 120’ of the North 102’ of Tract 323 and all of the North 102’ of Tract 324 except the West 178’) and Tract B (all of the North 102’ of Tract 323 except the West 120’), Sunnyside Addition, 7th Filing, Cheyenne, Wyoming, to be known as Diamond Estates, 5th Filing (replat in process) (located at the southeast corner of the intersection of Rock Springs Street and Pierce Avenue) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, portions of tract 245, 246, 247 and 248, Sunnyside Addition, 6th Filing, Laramie County, Wyoming (located at the northwest corner of the intersection of Hayes Avenue and US Highway 30) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for US 30

Business Plaza, a replat of Lots 1, 5 thru 8, Block 2, all of Blocks 3 and 4, Countryside Addition, and a portion of the NE¼ of Section 26, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming (located at the southwest corner of the intersection of US Highway 30 and Whitney Road). Mr. Shanor moved to adopt with staff conditions #1 and 3, seconded by Ms. Williams. Motion carried. Voting “yes” -- all members of the governing body present. (#5608)

[CA] RESOLUTION - Authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) Application to the State Loan and Investment Board for the Transfer Station Upgrade Phase II. Motion (per Consent Agenda) carried. (#5609)

[CA] RESOLUTION - Authorizing the submittal of an application to the Wyoming State Loan and Investment Board for a loan from the Wyoming Drinking Water State Revolving Fund for an amount not to exceed \$1,878,825 for Fiscal Year 2015 Distribution System Rehabilitations and authorizing the Mayor, the City Clerk and the Director of the Board of Public Utilities to execute the application and all related loan documents. Motion (per Consent Agenda) carried. (#5610)

[CA] RESOLUTION - Authorizing the submittal of an application to the Wyoming State Loan and Investment Board for a Loan from the Wyoming Drinking Water State Revolving Fund for an amount not to exceed \$589,800 for the RL Sherard Powdered Activated Carbon Feed System Project and Authorizing the Mayor, the City Clerk and the Director of the Board of Public Utilities to execute the application and all related loan documents. Motion (per Consent Agenda) carried. (#5611)

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2015 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113 -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne has agreed on County projects to be submitted to the State Loan and Investment Board for 2015 - 2016 Countywide Consensus Block Grant funding -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne is in agreement on two projects to be submitted by the Town of Albin to the State Loan and Investment Board for 2013 - 2014 Countywide Consensus Block Grant funding -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] Contract between the City of Cheyenne, Police Department, and Laramie County School District No. 1 for School Resource Officers, for the 2014 - 2015 school year. Motion (per Consent Agenda) carried (revenue to the City \$453,732.01). (#6218)

[CA] Agreement between City of Cheyenne, Parks and Recreation Department, and Recco, Inc., d/b/a/ Five-R Company, Cheyenne, Wyoming, for Construction Manager At Risk (CMAR) Services for the Cheyenne Botanic Gardens Conservatory Expansion and Renovation Project (1% Specific Purpose Sales & Use Tax). Motion (per Consent Agenda) carried. (#6219)

[CA] Contract between the City of Cheyenne and Cheyenne Housing Authority to provide services as described in the Older Americans Act of 1965 as amended. Motion (per Consent Agenda) carried (amount not to exceed \$45,000.00). (#6220)

[CA] Contract between the City of Cheyenne and Peak Wellness Center, Inc., Alcohol Receiving Center, to provide mental health and substance abuse services. Motion (per Consent Agenda) carried (amount not to exceed \$85,000.00). (#6221)

[CA] Software License Agreement between the City of Cheyenne, Police Department, and Brazos Technology, College Station, Texas, for electronic citation software and maintenance services (e-citation grant, 1% Specific Purpose Sales and Use Tax) -- referred to Finance Committee.

[CA] Contract Employment Agreement between the City of Cheyenne, Police Department, and Ashley McNelly, for crime victim assistance services (Victim Services grant) -- referred to Finance Committee.

[CA] Contract Employment Agreement between the City of Cheyenne, Police Department, and Brenda Johnson, for crime victim assistance services (Victim Services grant) -- referred to Finance Committee.

[CA] Contract Employment Agreement between the City of Cheyenne, Police Department, and Leslie Burch, for crime victim assistance services (Victim Services grant) -- referred to Finance Committee.

[CA] Contract Modification No. 2 to Contract No. 6115 between the City of Cheyenne and FCI Constructors of Wyoming, LLC, for interior demolition for the Cheyenne Public Safety Center Project (1% Specific Purpose Sales & Use Tax). Motion (per Consent Agenda) carried. (#6115)

[CA] Contract Modification No. 1 to Contract No. 5970 between the Wyoming Department of Transportation and the City of Cheyenne for the West Lincolnway Project (Wyoming Department of Transportation funding) -- referred to Finance Committee.

Consideration of Bid #R-27-14 for furnishing two new cab and chassis units with 40 yard front loader refuse collection bodies for the City of Cheyenne, Sanitation Division (Solid Waste Management Equipment Lease). Vicki Nemecek, Public Works, explained the two units will be the first step in automating commercial garbage collections; provided information on safety and reduced costs of collection; reviewed bids submitted, which include trade-ins, and staff's bid review process, and stated staff supports the bid that most closely meets the needs of the City as identified in the bid specifications. Ernie Kois, Kois Brothers Equipment Company, submitted (on file with City Clerk's office) and discussed information in support of the bid submitted by Peterbilt of Wyoming with a Heil manufactured body provided by Kois Brothers; reviewed similar equipment and body makes utilized by the City of Grand Junction, Colorado, and discussed items contained in the bid specifications (i.e. overall height, length and steel composition) that were not met by the Heil product and reasons for requesting the bid with the Heil body be considered. Paul Butcher, LaBrie Enviroquip Group, and Doug King and Dave King, Ameri-Tech Equipment Company, spoke in support of the bid submitted by Peterbilt of Wyoming with a LaBrie manufactured body provided by Ameri-Tech Equipment, noting the bid complied with all of the City's requested bid specifications and advising that money had been expended in order to meet the specifications as written (spreadsheet showing costs submitted (on file with City Clerk's office) by Doug King during his comments). Sara Vasquez, Purchasing Division, provided a brief background on the bid issuance, advertising, non-mandatory pre-bid meeting process and bid amendment information issued affiliated with the bid. She explained minimum specifications are contained in the bid document and potential bidders have a time frame in which to review and advise if there are concerns or questions concerning the minimum specifications. Mr. Brown reported there was no

recommendation on the item from Finance Committee. Mr. Brown moved to accept the bid from Peterbilt of Wyoming, Cheyenne, [City Clerk's note: with the LaBrie body provided by Ameri-Tech Equipment Company) per the recommendation of City staff, in an amount not to exceed \$496,184.00, including trade-ins, seconded by Mr. Valdez. Discussion topics included the integrity of the bid process through adherence to bid specifications; warranty/guarantee of the units; lease/purchase arrangements; review of bids and recommendation by staff; training to be received and affiliated cost, and storage site of the units. Vicki Nemecek provided information on the warranty time frame; lease/purchase financial arrangements to acquire the units as soon as they are available; staff members who reviewed and evaluated bids received, and type of training and affiliated costs, and advised the units will be stored at the Transfer Station. During discussion on the warranty topic, Mr. Kois and Mr. Doug King confirmed that their respective company will comply with the warranty requirement. Discussion continued on bid specifications and maintaining integrity of the bid process. Upon inquiry by Mayor Kaysen to members of the governing body present and there being no objection voiced, Mayor Kaysen queried Ms. Vasquez as to whether her lack of presence at the pre-bid meeting, as mentioned during Mr. Kois' comments, affected the bidding procedure. Ms. Vasquez responded that her absence bears no weight on the bid process. Upon inquiry, Ms. Nemecek provided additional information on the lease/purchase arrangements that will involve assessment of interest; mechanic training to be received and warranty time frame, and advised staff will be looking at setting up a depreciation fund in the future for purchases pursuant to information contained in the recent rate study. It was noted that historically the City has entered into lease/purchasing agreements for Sanitation equipment as the cost is such that the City hasn't had the money to purchase the items outright. Voting "yes" -- all members of the governing body present.

[CA] Consideration of Bid #R-4-15 for furnishing one new 2014 - 2015 twin screw diesel-powered cab and chassis for the City of Cheyenne, Sanitation Division (Insurance and Miscellaneous Claims). Motion (per Consent Agenda) carried (accept bid from Peterbilt of Wyoming, Cheyenne, in an amount not to exceed \$138,873.00).

[CA] Consideration of Bid #R-6-15 for furnishing Police vehicles for the City of Cheyenne, Police Department (2011 - 2014 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid from Spradley Bar Motors, Cheyenne, in an amount not to exceed \$252,815.00).

[CA] Consideration of Bid #M-1-15 for a contract between the City of Cheyenne, Fire and Rescue Department, and Richardson Construction, Inc., Cheyenne, Wyoming, for the Fire and Rescue/Police Department Storage Building Project (Impact Assistance fund). Motion (per Consent Agenda) carried (amount not to exceed \$247,715.00). (#6222)

[CA] Consideration of Bid #M-2-15 for a contract between the City of Cheyenne, Engineering Department, and Kolbe Striping, Inc., Castle Rock, Colorado, for 2014 City of Cheyenne Pavement Markings Project (2011 - 2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$104,500.00). (#6223)

[CA] Consideration of Bid #R-9-15 for furnishing bulk ice control product to the City of Cheyenne, Public Works Department (2011 - 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-5-15 for furnishing two new 2014 - 2015 diesel-powered 3-wheeled street sweepers with belt conveyor for the City of Cheyenne, Street and Alley Division (2007-2011

and 2011-2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Retail liquor license application filed with the City Clerk's Office for Red Lobster Hospitality LLC d/b/a Red Lobster #0639, 1923 Dell Range Blvd., Cheyenne, Wyoming (License currently held by GMRI, Inc. d/b/a Red Lobster #0639, 1923 Cheyenne, Wyoming). Motion (per Consent Agenda) carried.

[CA] Annual Report to the City of Cheyenne regarding capital improvements made at the Airport Golf Course as required by Lease Agreement. Motion (per Consent Agenda) carried (acknowledge receipt).

Announcement was made of the Appointment of Kevin R. Williams to the International Fire Code Board of Appeals, to be confirmed August 25, 2014.

Announcement was made of the Re-Appointments of Terence Roker, Philip Griggs, and Mary (Aragon) Connor, to the Public Transit Advisory Board, to be confirmed August 25, 2014.

Announcement was made of a Public Hearing to be held August 25, 2014 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to receive public input on an application requesting the establishment of a Residential Critical Traffic and Parking Area in the vicinity of the Cheyenne Regional Medical Center.

Under other business:

Rona Bartos commented briefly in support of the petition submitted by her and neighbors requesting the critical parking area near the hospital. Mayor Kaysen explained that the previous item on the agenda (refer to minutes above) pertained to the application/petition request and reiterated that a Public Hearing on the request would be held August 25, 2014 at 6:00 p.m.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:55 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
August 18, 2014